



Tort Law (9th edn)

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p. 446 16. Invasion of privacy

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Abstract

This chapter examines the nascent ‘tort’ of invasion of privacy. It first considers why no free-standing tort of invasion of privacy exists, before looking at breach of confidence—a legal concept straddling tort and equity and concerned with ‘secrets’ and judicially adapted to protect privacy by developing the new tort of misuse of private information. The chapter then asks whether developments in the law protecting privacy—particularly in the wake of the Human Rights Act 1998—threaten freedom of expression and therefore the general public’s ‘right’ to information, particularly about celebrities, including royalty and politicians.

Keywords: Keywords, tort law, invasion of privacy, breach of confidence, misuse of private information, Human Rights Act, freedom of expression, damages

Problem question

Read this problem question carefully and keep it in mind while you are working through the chapter that follows. At the end of the chapter you will be able to apply what you have learnt to the problem question and advise the relevant parties.

Elizabeth is the fiancée of a Premiership footballer, Alessandro Talenti. She has always been happy to be photographed with Alessandro at awards evenings, film premieres and charity events and also while out with her girlfriends shopping or lunching, or with other footballers’ wives and girlfriends watching football matches.

Recently, as she has started to organise her wedding, which she wants to be intimate and private, Elizabeth has found the media attention intrusive and has had several arguments with photographers wanting to take her picture whilst out shopping or in small, quiet restaurants. One photographer, Chris, is particularly persistent and takes photographs when she is leaving a hospital after visiting her mother who is very ill. He also photographed her (using a long-range lens) going in to a small London bridal boutique when she was shopping for bridesmaids' dresses with her young sister and niece.

On the wedding day—the press having been successfully excluded from the venue—one of the caterers secretly takes some pictures of the ceremony and the reception, where there were many famous guests. He sells these pictures to *Peachy!*, a well-known celebrity glossy magazine; the pictures are published in the following week's issue and online as an 'exclusive'. Meanwhile, a journalist contacts Alessandro saying he has found out that he had a brief affair the previous year while away at a football tournament and that this information is going to be published the following day.

Advise Elizabeth and Alessandro as to any legal actions they might be able to pursue.

p. 447 16.1 Introduction

Consider the following examples:

- *A famous pop singer is photographed entering an eating disorders treatment centre and the pictures are published in a tabloid newspaper.*
- *Long-range photographs are taken of a television newsreader, with her children on holiday, sunbathing and swimming in the sea. These are published on the website of a tabloid newspaper.*
- *A British actress marries a Hollywood actor. They agreed to sell their wedding photos to Look and See! magazine but secret photos of the ceremony are published in Look Here! magazine.*
- *A teenager is caught on CCTV vandalising a shop front. Images of him are published in a local newspaper and put on the local TV news.*
- *An Olympic gold-medallist is discovered to be having an extramarital affair by a reporter who wants to publish this information 'in the public interest'.*

In each of these examples the parties' privacy has, in some way, been invaded. Privacy is consistently a 'hot topic', from the 2012 Leveson Report into media practices, to the treatment of Prince Harry and Meghan Markle, Duke and Duchess of Sussex, by sections of the British media.¹ In modern society, there are obviously many ways in which information about others can be collected and transmitted, meaning that the protection of privacy is more relevant than ever.

That said, it took a long time for privacy to be protected by tort—and really this was driven by developments following the Human Rights Act (HRA) 1998. Limited protection was always possible: torts of trespass (to person and land), private nuisance, malicious falsehood and defamation all protect some aspects of privacy. Further protection comes from property rights, equity and copyright laws, as well as, inter alia, the Protection from Harassment Act 1997 and the Data Protection Act 1998.² However, it was not until 2014 that we could say there was an actual privacy tort—this is when the court first confirmed the tort of misuse of private information.³

p. 448 Many (but not all) claims regarding privacy violations are made by ‘celebrities’—alleging (usually but not always) media intrusion into their private lives. ‘Privacy’ has therefore become somewhat contentious. When asking whether someone should have the right to remain private in a particular situation, regard is often had to their fame, notoriety or their own self-exposure. Some believe that celebrities should accept the inevitable media and other interference fame brings. However, celebrity cases set precedents that apply for everyone and, while many of us will never be intruded upon by the media, others are (see e.g. *Venables v News Group Newspapers* [2001]; *X (a woman formerly known as Mary Bell) v SO* [2003]) and there are numerous other ways our privacy can be invaded (see e.g. *Wainwright v Home Office* [2003]; *Peck v UK* [2003]; *Rhodes v OPO* [2015]). Considering findings from the Leveson Inquiry, including about illegal phone hacking of teenage murder victim Milly Dowler and others’ mobile telephones, as well as high-profile sports, music, television, political and business personalities and others seeking injunctions and super-injunctions to prevent information about them being published, media intrusion and the consequent invasions of privacy it causes are rarely not in the spotlight.

This chapter considers how tort protects against invasions of privacy, by looking at the development of breach of confidence, a legal concept straddling tort and equity, once concerned with ‘secrets’ and now judicially adapted to protect privacy, in the form of ‘misuse of private information’. We consider whether developments in the law protecting privacy threaten freedom of expression and therefore the public’s ‘right’ to information, particularly about celebrities, including royalty and politicians.

16.2 A tort of invasion of privacy?

Successive Parliaments have been unwilling to create a privacy tort—despite numerous calls to do so. This legislative reluctance can be illustrated with a short review of Committee Reports and Bills presented to Parliament and parliamentary opinion thereafter.

Attempts to regulate privacy

In the 1960s three Bills directly relating to privacy were presented before Parliament; two of which expressly provided for an actionable right for citizens to claim that their privacy had been infringed. Each failed. Lord Mancroft's Bill (1961) was withdrawn due to lack of governmental support; Mr Alexander Lyon's Bill (1967) was rejected for being too limited; and Mr Brian Walden's Bill (1969) was rejected for encroaching too far into freedom of expression.⁴

Soon after, the Younger Committee presented its *Report on Privacy*,⁵ which concluded that there was 'no need to extend the law of privacy further'. The principal objection related to defining 'privacy', but it was also thought that sufficient remedies already existed, and preferred self-regulation of media outlets. Similar views were advocated by the McGregor Commission in 1977.⁶ These reports were followed by two Bills presented within the 1988–9 parliamentary sessions—again, both failed.⁷

↪ In 1990, the Calcutt Committee again rejected the creation of a tort of privacy in favour of press self-regulation through the Press Complaints Commission.⁸ Even after reviewing the laws of France, Germany and the United States, the Committee could not satisfactorily define 'privacy'. Its final statement expressing the government's view was presented in 1995. Once again self-regulation was preferred and no intention to introduce a tort of privacy was expressed.⁹ Although in 2004 the House of Commons Culture, Media and Sport Committee advocated a specific right of privacy,¹⁰ it later acknowledged that:

To draft a law defining a right to privacy which is both specific in its guidance but also flexible enough to apply fairly to each case which would be tested against it could be almost impossible. Many people would not want to seek redress through the law, for reasons of cost and risk. In any case, we are not persuaded that there is significant public support for a privacy law.¹¹

As already noted, a key problem has been the lack of a coherent definition of what privacy is. One reason for this may be that 'privacy' is not the same for all people. It has variously been described as 'the right to be let alone',¹² to be free from an 'unwanted gaze' or 'unauthorised interference with a person's seclusion of himself'¹³ or to have unfettered control of information about or images of oneself.¹⁴

Other nations have well-established privacy protection, suggesting that workable definitions are possible.¹⁵ However, these protections vary in their intensity, which may be one of the factors making finding a universal definition so difficult. In France, for example, invasion of privacy is a crime, supported by civil injunctions; therefore people, including 'celebrities', can keep their private lives very private indeed.¹⁶ German law offers less protection but its Constitution protects information about citizens' personal and private lives, a concept developed by the courts over time in a flexible way.

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As early as 1931, Percy H Winfield said that he hoped the House of Lords would develop a new tort to protect privacy. However, 60 years later, the common law still had no defined privacy protection, clearly illustrated by *Kaye v Robertson and Sport Newspapers Ltd* [1991].

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***Kaye v Robertson and Sport Newspapers Ltd* [1991] FSR 62 (CA)**

Gorden Kaye (at the time a well-known TV personality) suffered extensive brain injuries when a billboard collapsed onto his car. An editor and photographer from the *Sunday Sport* newspaper gained entry to his hospital room, photographing him semi-conscious in bed and conducting an 'interview', later marketing these as a 'scoop'. His injuries meant Kaye had no memory of this occurring. Kaye's agent sought an injunction to prevent the pictures and story being published. As there was no specific privacy tort to claim under, he resorted to other torts, including defamation, passing off, malicious falsehood and trespass to the person.

All but the malicious falsehood claim failed. This meant only that the newspaper had to remove any references that said Kaye had consented to being interviewed or photographed—the photos were still published. The Court of Appeal recognised that it was a clear invasion of privacy to be photographed in a hospital bed, particularly when one had no power to prevent this, but nothing more could be done. English tort law had created various 'boxes' of liability which, if a claim does not fit into them, leave no redress:

If ever a person has a right to be let alone by strangers with no public interest to pursue, it must surely be when he lies in hospital recovering from brain surgery and in no more than partial command of his faculties. It is this invasion of his privacy which underlies the [claimant's] complaint. Yet it alone, however gross, does not entitle him to relief in English law. (Bingham LJ at 70)

In *Kaye*, the Court of Appeal recognised the need for a tort of invasion of privacy but deferred responsibility for this to Parliament: 'The facts of the present case are a graphic illustration of the desirability of Parliament considering whether and in what circumstances statutory provision can be made to protect the privacy of individuals' (Gladwell LJ at 66).

Similarly, in *Malone v Metropolitan Police Commissioner (No 2)* [1979], a case concerning telephone tapping, Sir Robert Megarry V-C emphasised that the courts should not 'legislate' where no right has been created. He stated that 'where Parliament has abstained from legislating on a point that is plainly suitable for legislation, it is indeed difficult for the court to lay down new rules of common law or equity that will carry out the Crown's treaty obligations' (at 373, referring to the state's obligations under the ECHR). This desire to refrain from judicial intervention in favour of legislative action was also acknowledged in *Wainwright*. Lord Hoffmann (with whom the other law lords all agreed) explicitly agreed with Sir Robert Megarry V-C, rejecting any 'broad brush approach' of the common law (at [33]) and stated that English law neither

contained nor needed a specific privacy tort, and might even be *unable* to create one (at [18]). A year later, in *Campbell v Mirror Group Newspapers* [2004], Lady Hale said: ‘our law cannot, even if it wanted to, develop a general tort of invasion of privacy’ (at [133]).¹⁷

p. 451 ↪ Thus, both the judiciary and Parliament have long been averse to the idea of creating a privacy tort, for various reasons, including lack of precedent or a suitable definition of privacy, concerns about frivolous claims, the appropriate remedy (and whether any remedy could be effective, especially after the event) and concern about restraints on freedom of expression.

Counterpoint

In our view, none of these reasons are convincing. Lack of precedent does not prevent Parliament enacting legislation nor, in other areas, has it stopped the courts ‘creating law’ (see e.g. the tort in *Wilkinson v Downton* [1897] or the action under *Rylands v Fletcher* [1868]). Definition may be problematic, but it is not insurmountable. The 1972 Younger Committee report described privacy as ‘privacy of information, that is the right to determine for oneself how and to what extent information about oneself is communicated to others’.¹⁸ This interpretation fits well with the majority of the cases we discuss shortly—perhaps indicating that defining privacy has never really been problematic or that a definition is in fact relatively unimportant.

The concern about frivolous claims surfaces each time a potential new harm is identified in tort. Yet the ‘floodgates’ that the judiciary seem so concerned to avoid opening do not seem to have opened in other jurisdictions and, given the personal and financial cost of bringing any legal claim (particularly as legal aid would not be available), few could bring so-called frivolous claims. If the courts are concerned that there will be *more* claims, this is a different issue—but more claims may simply reflect more invasions of privacy, which may indicate that those who continuously infringe individuals’ personal and private lives (e.g. the press) ought to be reined in by private law.

Remedies are more problematic. Most claimants wish to prevent information reaching, or to have information withdrawn from, the public sphere (e.g. in the form of an injunction prohibiting publication). Often it will be too late to do this. However, this difficulty is not used as a reason to *deny* remedies in other areas: for personal injuries caused by negligence there is no remedy that can give a claimant back a lost limb, yet the ‘appropriateness’ of the remedy, which must be monetary, does not prevent actionable claims. In any case, damages can be awarded in lieu of an injunction in appropriate cases.

Concerns about infringements on the right to freedom of expression are more valid. It is right in a democratic society that people, including the media, are free to form and speak their opinions. However, again (and as the cases discussed later show) the problem is not insurmountable: a balancing exercise is undertaken and in fact the development of this balancing exercise is what opened the door for the courts’ acknowledgement that a tort exists.

Test your understanding by trying this section's self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-16-2>>.

16.3 How has privacy been protected?

As indicated earlier, the legislature, not wanting to be seen to be curbing the important right to freedom of expression, has long favoured self-regulation of the press.

p. 452 16.3.1 Self-regulation

The Culture, Media and Sport Select Committee, in its 2007 report *Self-Regulation of the Press*, concluded that significant progress had been made to ensure the correct balance between protecting privacy and the right to publish—so much so that any statutory regulation would, in its view, ‘represent a very dangerous interference with the freedom of the press’, adding ‘[w]e continue to believe that statutory regulation of the press is a hallmark of authoritarianism and risks undermining democracy’.¹⁹ More authority was instead given to the Press Complaints Commission (PCC), an organisation that supposedly monitored British press adherence to ethical guidelines. The PCC was closed down in September 2014.²⁰

Pause for reflection

The PCC marketed itself as ‘fast, free and fair’—its main advantage supposedly that it was quicker to achieve adjudication than through the court system. People who considered that their privacy had been violated by the print media could complain to the PCC, which could obtain a retraction and an apology, but could provide no further remedies.

Sara Cox, the radio DJ and TV presenter, complained to the PCC after a tabloid newspaper published long-range photographs of her sunbathing topless on a private beach on honeymoon. She complained that the photographs were taken when she was in a place where she had a reasonable expectation of privacy and were published in breach of her right to respect for her private life. Following adjudication by the PCC, the newspaper's editor published a prominent apology and wrote privately to Ms Cox, but she sued anyway,²¹ later settling out of court.

Why did Sara Cox sue even after an apology was obtained? Once private photographs have been published, they cannot be retracted—is an apology enough? Do you think the fact that the newspaper settled out of court is an indication or an admission of wrongdoing?

As Sara Cox's case illustrates, the PCC lacked ‘teeth’. Its board was composed mainly of press representatives, including editors of national newspapers—so it had a vested interest in what was and was not published.

The Leveson Inquiry

The PCC's ineffectiveness was something that vexed Lord Justice Leveson in his important inquiry into the culture, practices and ethics of the press in 2011–12.²² While not specifically concerned with privacy (it was ordered by then Prime Minister David Cameron in the wake of public outrage surrounding the newspaper phone-hacking scandal), many of the recommendations from the 2,000-page report have affected the law in some way and are likely to continue to do so.²³ The recommendations included the following:

- (1) Dissolution of the PCC and the creation of a new, wholly independent regulatory body comprised of people with media experience but no serving editor, government minister or politician.
- (2) This body should create a Standards Code recognising the importance of freedom of speech and of publishing matters in the public interest, such as the exposure of serious impropriety or crime, particularly of public figures.
- (3) The Code should address the way individuals are treated by the press, especially regarding accuracy, avoiding misrepresentation of facts and maintaining appropriate respect for their privacy.
- (4) The body should be empowered to grant appropriate remedial action for breach of its standards, to direct the nature and placement of apologies/corrections and to impose sanctions including financial penalties (Leveson envisaged fines of up to 1 per cent of annual turnover up to a maximum of £1 million for serious systemic violations).
- (5) Legislation should 'underpin' the proposed system of self-regulation.

Welcoming the Leveson Report, David Cameron agreed that a new and independent regulator of the press, with a new code of standards, was required. However, he viewed using legislation to underpin this as 'crossing the Rubicon' and political opinion on the matter was very much divided.²⁴ The government nonetheless committed to implementing Leveson's key recommendation: the media should regulate itself but there should be independent verification (or 'recognition') of those regulatory arrangements. The three major parties eventually reached agreement on establishing an independent regulator backed by Royal Charter.²⁵ In November 2014 the Press Recognition Panel (PRP) was established to independently verify the media's new self-regulatory body: the Independent Press Standards Organisation (IPSO).²⁶

IPSO was established 8 September 2014, replacing the discredited PCC. More independent of media interests than the PCC, under the terms of its Editors' Code of Practice it can deal with inaccurate reporting, invasion of privacy, intrusion into grief or shock and harassment by the press.²⁷ It has the power to obtain apologies and corrections, but may also issue fines in sufficiently serious cases.²⁸

Clause 2 of IPSO's Editors' Code of Practice, the current version of which came into effect on 1 January 2025, says:

2 *Privacy

- i) Everyone is entitled to respect for their private and family life, home, physical and mental health, and correspondence, including digital communications.
- ii) Editors will be expected to justify intrusions into any individual's private life without consent. In considering an individual's reasonable expectation of privacy, account will be taken of the complainant's own public disclosures of information and the extent to which the material complained about is already in the public domain or will become so.
- iii) It is unacceptable to photograph individuals, without their consent, in public or private places where there is a reasonable expectation of privacy.

The asterisk denotes a section of the Code from which IPSO allows derogation if it is in 'the public interest' to do so. This is defined at the end of the Code:

The Public Interest

1. The public interest includes, but is not confined to:
 - Detecting or exposing crime, or the threat of crime, or serious impropriety.
 - Protecting public health or safety.
 - Protecting the public from being misled by an action or statement of an individual or organisation.
 - Disclosing a person or organisation's failure or likely failure to comply with any obligation to which they are subject.
 - Disclosing a miscarriage of justice.
 - Raising or contributing to a matter of public debate, including serious cases of impropriety, unethical conduct or incompetence concerning the public.
 - Disclosing concealment, or likely concealment, of any of the above.
2. There is a public interest in freedom of expression itself.
3. The regulator will consider the extent to which material is already in the public domain or will become so.
4. ↺ Editors invoking the public interest will need to demonstrate that they reasonably believed publication—or journalistic activity taken with a view to publication—would both serve, and be proportionate to, the public interest and explain how they reached that decision at the time.
5. An exceptional public interest would need to be demonstrated to over-ride the normally paramount interests of children under 16.

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Pause for reflection

It is hard to establish how effective IPSO is, especially as some major news publishers have opted out of its system and it refuses to apply for recognition by the PRP. Further, in October 2016 another regulator—IMPRESS (the Independent Monitor for the Press)—was established in 'opposition' to IPSO, claiming to be 'the first truly independent press regulator in the UK'. It has its own Standards Code, with different (broader) definitions of privacy and public interest, and is said to be 'Leveson compliant'.²⁹ As you read further, consider whether these Codes are likely to alter the way the press operates, especially given these internal disagreements.³⁰

Also consider the fact that Leveson paid little attention to the burgeoning sphere of social media, the development of which he viewed as 'largely irrelevant to his considerations' and not lending itself to regulation. What role do you think the expansion of social media has played in the privacy debate? Can the mainstream press be effectively regulated (and should it be) while others are free to post almost anything (subject to criminal law) online?³¹

Existing 'boxes' of liability (*Kaye*), as well as self-regulatory bodies, have had limited effect when an individual claims infringement of their privacy. However, the courts developed another route which offers greater protection of privacy: actions for breach of confidence.

16.3.2 Development of breach of confidence

Breach of confidence stems from equity and is designed to protect 'secrets' or confidential information. In *Coco v AN Clark (Engineers) Ltd* [1968], the duty was said to be breached when:

- (1) information exists which has 'the necessary element of confidence about it';
- (2) the defendant could be said to be obliged to keep the information confidential; and
- (3) 'unauthorised use' of the information was made by the defendant.

p. 456 ↵ Thus, it can be used only when a *duty* of confidentiality is established. As it was primarily used to protect commercial secrets, it would initially appear to have little application to the type of privacy cases we are concerned with.³² Conventionally, a pre-existing relationship was required to bring about the duty. So, there would only be limited application in the context of personal secrets, for example in a marital relationship or between a party and someone taken into their confidence.

In *Attorney General v Guardian Newspapers Ltd (No 2)* [1990], a case relating to the publication of the controversial *Spycatcher* book, Lord Goff declared that a duty of confidentiality exists when:

confidential information comes to the knowledge of a person ... in circumstances where he *has notice or is held to have agreed* that the information is confidential with the effect that it would be just in all the circumstances that he should be precluded from disclosing the information to others. (at 281, emphasis added)

Thus, a pre-existing relationship is not necessarily required. A duty will arise if a party gains information and knows (or ought to know) that they would be expected to keep it confidential. This has far broader implications for the protection of privacy, particularly in relation to press intrusion into people's personal lives, as clearly illustrated by *Venables v News Group Newspapers* [2001] and *X (A woman formerly known as Mary Bell) v SO* [2003].³³ In *Venables* an injunction was imposed *contra mundum* (against the whole world) to prevent disclosure of information that might reveal the identity or whereabouts of the killers (who had themselves been children at the time of the murder) of toddler Jamie Bulger. The justification for this was

that another right was at issue—the right to life of the claimant—who might suffer at the hands of members of the public if his identity was revealed.³⁴ Similarly, in *X*, an injunction was imposed to prevent the publication of information that might identify Mary Bell (who had also killed children when she was a child herself) and also her own, now adult, daughter. More recently, a *contra mundum* injunction prohibiting publication of the new identities of a police informant and his relatives was granted, in order to protect their physical safety and right to life.³⁵

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Pause for reflection

Following these cases, do you think that what might make information confidential depends on how much *harm* would be caused to the parties concerned if the information was leaked? As you read through the chapter, think how a harm-based analysis fits with other cases decided in favour of the claimants. Do you think this is an appropriate test? Photographs of holidays or weddings being published without consent can be viewed as causing little or no real harm when compared to a risk to the right to life. But, on the other hand, it depends what we consider ‘harm’ to be—if the harm is the invasion of privacy itself then are all claimants in these cases equally deserving?

The defence to a breach of confidence claim is to show that disclosure of the information, though confidential in nature, is justified in the public interest. That is, the public interest in disclosure must be weighed against the interest of the claimant in maintaining confidentiality (*Attorney General v Guardian Newspapers Ltd (No 2)*).³⁶

In *Douglas, Zeta-Jones and Northern & Shell plc v Hello! Ltd* [2005] breach of confidence essentially became a privacy action in all but name.

***Douglas, Zeta-Jones and Northern & Shell plc v Hello! Ltd* [2005] EWCA Civ 595 (CA)**

The celebrity couple Michael Douglas and Catherine Zeta-Jones married in a New York hotel. They entered a £1 million contract with *OK!* magazine to publish exclusive photographs of the wedding and it was a term of the contract that the couple would have the final say regarding which photographs could be used. The wedding was otherwise private. Its location had not been made public and guests were asked not to bring cameras. Despite the security provided by the couple, a freelance photographer managed to get into the wedding and take covert pictures, which he then sold to rival magazine *Hello!* The couple sought and failed to achieve an interim injunction to prevent *Hello!* publishing the pictures, relying in part on breach of confidence and the new ‘privacy’ law (which they argued had been created by the HRA).

The court disagreed with the claimants' submission that the HRA had created a new action in law on the basis that existing law was enough to protect people's privacy interests. It found that there had been a breach of confidence, relying on *Coco*. It said that *Hello!* should clearly have realised that 'an obligation of confidence' existed in relation to the photographs (otherwise the photographer would not have had to obtain them secretly) and that there was no authority for their use, as it had been widely publicised that the wedding was to be a private event. The couple was awarded £14,500 damages for interference with the remaining right of privacy they had after selling the photographic rights in the first place. (*OK!* magazine was also awarded more than £1 million for lost profit; this award was overturned by the Court of Appeal but later restored by the House of Lords in 2007.)

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Pause for reflection

If hundreds of people were at the wedding anyway, and the photographs were to be sold to a publication that would be seen by millions, was this really a private affair? What made the unauthorised photographs an invasion of the claimants' privacy, when they had already contracted to share their wedding day with the world? Does this case fit with the 'harm' analysis mentioned earlier? The claimants would presumably feel saddened to know that covert photography had taken place on their wedding day by someone seeking to make a profit—but is this harmful?

Do you agree with the decision? If not, is this *because* the couple had entered a contract that was designed for them to have control over which information (photographs) stayed private and which was made public?

The court in *Douglas* found that it did not matter that there were so many people at the wedding as everyone there *knew* it was private. So understood, the photographs, because of the design of the contract with *OK!*, were confidential precisely *because* of their commercial value. In effect, the Court of Appeal was simply applying the normal rules on breach of confidence. As in *Kaye*, the court made it clear that it was for Parliament to create a tort of invasion of privacy, not judges, who could only work with existing laws. However, because of the nature of the case—and who brought it—it was seen as establishing, even for people in the public eye, a (limited) right to privacy.

Breach of confidence resurfaced again in *ABC and others v Telegraph Media Group Ltd* [2018]. In this controversial case, the Court of Appeal granted an interim injunction to the claimants (one a prominent businessman) in relation to allegations made by five previous employees about his 'discreditable conduct'. A journalist had approached the claimants, informing them that details of the allegations were to be published, including the fact that the complainants had all signed non-disclosure agreements (NDAs), for which they had received substantial monetary payments. The claimants (two companies and the businessman concerned) immediately sought an injunction preventing them from being named, or information about the

allegations or NDAs being published. The Court of Appeal (overturning an earlier judgment of the High Court) found that an interim injunction should be granted, as the information carried the necessary degree of confidence. It recognised the importance of protecting duties of confidence and was not persuaded that the ‘public interest in publication outweighs the confidentiality attaching to the information pending a speedy trial’ (at [31]). The Court of Appeal essentially made it clear that this was not a test of whether the information was in the public interest, but whether it is in the public interest that the duty of confidence should be breached. The case was later discontinued by the claimants in February 2019, reportedly leaving them with a £3 million legal bill. This also meant that the Court of Appeal’s injunction was discharged, and the *Daily Telegraph* immediately published its allegations that the businessman concerned was Sir Philip Green (owner of Topshop/Topman stores, among others), and had subjected five individuals to racial, physical and sexual abuse and other bullying behaviour.³⁷

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Pause for reflection

The *ABC* decision had meant that an *interim* injunction would be in place—until the point of a full trial that would decide whether a permanent injunction should be granted. This meant that the information may still have come to light, after a proper trial of the facts, which the Court of Appeal had ordered to be expedited in recognition of the undesirability of delay in the publication of matters of potential public interest. However, the Court of Appeal’s decision was overtaken by the actions of Lord Hain who, exercising parliamentary privilege, named Sir Philip Green in the House of Lords in October 2018, undoubtedly leading to the claimants’ later discontinuation of the case.

Notwithstanding the rights and wrongs of naming the claimant at that stage in the proceedings, the case should make us think. Presumably, there is a public interest in the disclosure of multiple allegations of sexual harassment, bullying and racial abuse by a senior executive who then paid large sums to prevent victim-survivors telling their stories publicly. The use of NDAs in this respect should give us cause for concern.³⁸ Strong criticism was voiced against them by *The Telegraph* in response to the judgment. Though this was not unexpected, given that it was the defendant in this case (and had spent eight months researching the story), the criticism referred to concerns about NDAs being used to cover up potential wrongdoing, particularly by powerful individuals, saying it would ‘reignite the #MeToo movement against the mistreatment of women, minorities and others by powerful employers’. Maria Miller MP, then chair of the House of Commons’ Women and Equality Committee, said it was ‘shocking’ that NDAs were being used to gag victims and that they should not be used ‘where there are accusations of sexual misconduct and wider bullying’.³⁹

Linklaters LLP and another v Mellish [2019] concerned the issue of how large ‘Magic Circle’ law firms deal with workplace sexual harassment. Mellish, who had left Linklaters after a short period of employment, emailed the senior partners announcing that he intended to share his ‘impressions of the current culture at Linklaters’, especially ‘the ongoing struggle Linklaters has with women in the workplace’. He highlighted three incidents in particular, saying he would go on record about how the

company had handled them. Mr Justice Warby, granting an interim injunction, ruled Linklaters had a 'legitimate interest' in maintaining confidentiality over such matters, and that this outweighed the public interest in the conduct of large firms. Commenting on the decision, Richard Moorhead says:

He [Warby J] does not consider the possibility that stifling a discussion of firm culture is more likely to inhibit the coming forward of complainants. Judges need to think more carefully if protecting the reputation of men, whilst claiming to protect the interests of women.⁴⁰

Test your understanding by trying this section's self-test questions. <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-16-3>>.

p. 460 16.4 A new tort: 'Misuse of private information'

Douglas opened the door for other privacy claims, most involving high-profile claimants. The major turning point—and the genesis of a new tort—came when supermodel Naomi Campbell tried to suppress publication of details of her rehabilitation from drug addiction.

Campbell v Mirror Group Newspapers (MGN) [2004] UKHL 22 (HL)

The *Daily Mirror* published stories about Naomi Campbell seeking treatment for drug addiction. On one occasion it published a photograph showing her leaving a Narcotics Anonymous meeting in London and details about what her treatment might entail. Having tried and failed to sue for invasion of privacy, Campbell framed her action as a claim for breach of confidence, arguing that any 'reasonable person' would realise that details of her treatment and where this was taking place were clearly confidential.

A bare majority of the House of Lords upheld her claim—in part. Because she had previously denied having a drugs problem, despite acknowledging that many models did take drugs, the law lords held that the story detailing the fact that she did in fact use illegal drugs, and was attending Narcotics Anonymous for help in overcoming this problem, could be published, as this was correcting an inaccurate image she had portrayed of herself. However, they went on to hold that the details of her treatment as well as the photograph of her leaving the meeting could *not* be published. Medical information is always a confidential matter, and publishing the photograph may allow people to discover where her treatment was taking place. Both things, if published, could have negative effects on the treatment itself.

Campbell is significant.⁴¹ In *Campbell*, their lordships clarified the relationship between breach of confidence and invasion of privacy. Lord Nicholls (dissenting), while accepting that the nature of breach of confidence had changed once the pre-existing relationship requirement was removed, maintained that there was ‘no over-arching, all-embracing cause of action for “invasion of privacy”’ (at [11]). However, he acknowledged that developments in the law, particularly regarding breach of confidence, had been prompted by the HRA and that because the duty of confidence now arose where ‘a person receives information he knows or ought to know is fairly and reasonably to be regarded as confidential’ this had in essence created a tort of ‘misuse of private information’ (at [14]). Furthermore, the HRA, plus European Court of Human Rights (ECtHR) jurisprudence, prompted him to acknowledge that ‘the values enshrined in Articles 8 and 10 [ECHR] are now part of the cause of action for breach of confidence’ (at [17]). Thus, future cases—now understood as ‘misuse of private information’ claims—would need to concentrate more on confidential/private information and the balance of the claimant’s right to private, home and family life (Art 8 ECHR) against the defendant’s right to freedom of expression (Art 10 ECHR).

That there is a tort of misuse of private information was confirmed by the High Court in *Vidal-Hall and others v Google Inc* [2014] in the context of Google’s misuse of personal data obtained via the Safari browser. Tugendhat J cited Lord Nicholls in *Douglas and others v Hello! Ltd and others* [2007] as authority that ‘breach of confidence, or misuse of confidential information, now covers two distinct causes of action, protecting two different interests: privacy, and secret (“confidential”) information’ (at [255]). He concluded that a distinct ‘tort of misuse of private information’ exists (at [70]). This was upheld by the Court of Appeal in *Google Inc v Vidal-Hall and others* [2015]. Also in 2014—though this part of the claim was ultimately unsuccessful—it was considered a tort by the Court of Appeal in *OPO v MLA* [2014], where a child sought to prevent publication of his father’s (a successful musician and public figure) autobiography.⁴² The Supreme Court confirmed the tort in *PJS v News Group Newspapers Ltd* [2016].

Since *Campbell*, a two-stage test is used to determine whether ‘misuse of private information’ has occurred.⁴³ The test is as follows.

- (1) Did the claimant have a ‘reasonable expectation of privacy’ regarding the information? If so,
- (2) Does their interest in maintaining their right to privacy outweigh the defendant’s interest in freedom of expression (i.e. the ability to publish the information)?

This inevitably leaves us with a question: what is a reasonable expectation of privacy?

16.4.1 What is a ‘reasonable expectation of privacy’?

In *Campbell*, it was held that a reasonable expectation of privacy would arise when it was ‘obvious’ that the information being disclosed was private.⁴⁴ While the majority of the law lords thought that information about treatment for drug addiction was obviously private, they did not think the same of the photograph, as this was taken on a public street.

Pause for reflection

Lord Nicholls (dissenting in *Campbell*) argued that treatment for addiction at Narcotics Anonymous followed a well-known pattern and as such the disclosure of information about this was no more significant than ‘saying a person who has fractured a limb has his limb in plaster or that a person suffering from cancer is undergoing a course of chemotherapy’ (at [26]).

Do you agree? Or does the fact that drug addiction relates to a person’s mental wellbeing and is associated with judgements that can be made about their personality and private life, as well as their physical health, distinguish the two examples?

A secondary test was proposed for situations—like the photo—where it is not ‘obvious’ that information was private. Then, we must ask whether disclosure of the information would cause offence to a ‘person of ordinary sensibilities’ if it was about them.⁴⁵ This is a fairly bizarre subjective–objective test, particularly as the courts must put themselves into the minds of a ‘person of ordinary sensibilities’ in the same situation as the claimant—often situations that are unlikely to happen to most ‘ordinary people’. Because on this secondary test it could be harmful to Naomi Campbell’s treatment of and recovery from addiction to publish a photograph from which the location of her treatment could be identified, publication was prevented. In other words, because to publish a photograph which could enable people to find out where an obviously private medical treatment was taking place might cause offence to ‘a person of ordinary sensibilities’, she could *also* establish a ‘reasonable expectation of privacy’ in relation to the photographs. As Baroness Hale noted, it would have been different if Campbell was merely ‘going about her business in a private street’ because:

she makes a substantial part of her living out of being photographed looking stunning in designer clothing. Readers will obviously be interested to see how she looks if and when she pops out to the shops for a bottle of milk. (at [154])

Pause for reflection

Look again at *Kaye*. If the same events happened today, would the case be decided differently? The images of him in hospital would have a ‘reasonable expectation of privacy’ attached (as photographs of a person in hospital, unable to give their consent, can easily be considered ‘obviously’ private) and it would be unlikely that the photographs of him would be in the public interest, even if the public was interested in the fact that he had been injured. The question is about where the line should be drawn about what information the public should be given about the private lives of others.

p. 463 Compare *Elton John v Associated Newspapers* [2006], where Sir Elton John complained that a picture taken of him walking away from his car with his driver was an invasion of privacy. ↵ The court found that the picture contained no obviously private information and was merely a snapshot of him going about his ordinary life. Similarly, in *Serafin v Malkiewicz and others* [2017] a photograph of the claimant (who was engaged in a more detailed defamation claim and argued that the photograph showed him in a negative light) gesticulating with two fingers was found to be ‘no big deal’ in the modern age (at [351]) and did not engage a reasonable expectation of privacy.⁴⁶

A ‘reasonable expectation’ of privacy will, therefore, generally be quite ‘obvious’.⁴⁷ The test was confirmed by the Court of Appeal in *Murray* (discussed later) to be:

a broad one, which takes account of all the circumstances of the case. They include the attributes of the claimant, the nature of the activity in which the claimant was engaged, the places at which it was happening, the nature and purpose of the intrusion, the absence of consent and whether it was known or could be inferred, the effect on the claimant and the circumstances in which and the purposes for which the information came into the hands of the publisher. (at [36])

In *Middleton and another v Person or Persons Unknown* [2016], Pippa Middleton (sister of Catherine, Princess of Wales), was granted an injunction preventing publication of some 3,000 photographs stolen from her iCloud account. In *Ali and another v Channel 5 Broadcast Ltd* [2018], the claimants were found to have a reasonable expectation of privacy in relation to the filming and broadcast of their eviction from their privately rented home on the TV programme *Can’t Pay? We’ll Take it Away*.⁴⁸ In contrast, it seems that sending private emails from a work account will *not* always attract a reasonable expectation of privacy.⁴⁹ In *Stoute & Stoute v News Group Newspapers* [2023] the Court of Appeal confirmed that ‘case law recognises that photographs require special consideration’ because they are uniquely ‘private’ and vulnerable to misuse (at [35]).⁵⁰ In terms of considering ‘all the circumstances of the case’, *LCG and others v OVD and others* [2023] confirms that the ‘*Murray* factors’ are not exhaustive and ‘other relevant factors would also include the content of the pictures, the circumstances in which they were created and held, and how and why any claimant had and asserted an entitlement to prevent or control their accessibility’ (at [16]).

That said, there are several types of case that can be grouped together to see whether general principles in respect of a reasonable expectation of privacy arise, including where claimants are under investigation, where the information is of a sexual or intimate nature, where children are involved or where there is iniquity on the part of the claimant.

16.4.1.1 Subjects of investigations

p. 464 Being the subject of a police investigation appears to attract a reasonable expectation of privacy.⁵¹ This was reiterated in *Richard v BBC and another* [2018], even once the information (about investigations being conducted into historic child sex abuse allegations under ↵ Operation Yewtree) had come into the hands of the media. Likewise, in *XKF v BBC* [2018] the claimant, an ex-police officer who had been imprisoned for corruption, successfully prevented the BBC from showing an interview with him on its *Panorama* programme. Though there might not be a reasonable expectation of privacy in relation to his initial conviction

(even though it was by then spent), there was in respect of his *rehabilitation* (including his change of identity).⁵² In *ZXC v Bloomberg* [2022] the Supreme Court confirmed that ‘as a legitimate starting point, a person under a criminal investigation has, prior to being charged, a reasonable expectation of privacy in respect of information relating to that investigation’ (at [146]). In contrast, no reasonable expectation of privacy was found in *Axon v Ministry of Defence* [2016] in the context of leaks to a national newspaper about a former Royal Navy commanding officer who had been removed from command following allegations of bullying.

16.4.1.2 Intimate or sexual information

In *Elizabeth Jagger v John Darling* [2005], Elizabeth Jagger (the daughter of Mick Jagger) obtained an injunction preventing the publication of pictures and CCTV footage of her and Calum Best (the son of footballer George Best) engaged in ‘sexual activities’ in the doorway of a nightclub. Mr Justice Bell found that she had a reasonable expectation of privacy as, although in a public space, she was unaware of being observed. In *Mosley v NGN* [2008], it was confirmed that one’s sexual activities are generally to be considered private.

***Mosley v News Group Newspapers Ltd* [2008] EWHC 1777 (QB)**

The late Max Mosley, son of 1930s British Fascist leader Sir Oswald Mosley, and the then head of the International Automobile Federation (FIA), was covertly filmed by the *News of the World* with five prostitutes in a London basement flat. The now defunct newspaper described a ‘sick Nazi orgy’ and a ‘truly grotesque and depraved’ event, posting the film on its website and alleging that Mosley had assumed the role of a concentration camp commandant, saying: ‘In public he rejects his father’s evil past but secretly he plays Nazi sex games’.⁵³ The film was viewed by 3.5 million people. In court, Mosley admitted involvement in sadomasochistic extramarital sex, but denied the link to Nazism. Mr Justice Eady ruled that Mosley had a reasonable expectation of privacy in relation to his sexual activities, though unconventional, if they took place between consenting adults on private property (at [232]). He said that the authorities tend to show that ‘people’s sex lives are to be regarded as essentially their own business—provided at least that the participants are genuinely consenting adults and there is no question of exploiting the young or vulnerable’ (at [100]).⁵⁴ Given that the link to Nazism was not proved, Mr Justice Eady further concluded that there was:

no public interest or other justification for the clandestine recording, for the publication of the resulting information and still photographs, or for the placing of the video extracts on the *News of the World* website—all of this on a massive scale. Of course, I accept that such behaviour is viewed by some people with distaste and moral disapproval, but in the light of modern rights-based jurisprudence that does not provide any justification for the intrusion on the personal privacy of the claimant. (at [233])

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Notably, Eady J stressed that this was not a ‘landmark’ decision (at [234]), but one that applied ‘recently developed but established principles’ to an unusual set of facts.⁵⁵

That private intimate relationships attract a reasonable expectation of privacy was restated in *AMC and another v News Group Newspapers Ltd* [2015], a case about an affair conducted by a ‘prominent and successful professional sportsman, who has, from time to time held positions of responsibility in his sport’ (at [6]).⁵⁶ In *Wan-Bissaka and another v Bentley* [2020] the Premiership footballer succeeded in a claim against his former partner to prevent her disclosing details of their relationship, including text conversations. The principle holds in a non-celebrity context too: *ZYT and another v Associated Newspapers Ltd* [2015] and *Bull v Desporte* [2019].

When there is already some public awareness of the information, a ‘reasonable expectation’ of privacy may be lost. In *Theakston v MGN Ltd* [2002], for example, an attempt by a radio and television presenter to prevent publication of information about his visit to a brothel failed due to knowledge of the event already being in the public domain.⁵⁷ However, what is considered to be in the public domain is a fine line—for example, Ned Rocknroll (now known as Edward Abel Smith, the husband of actress Kate Winslet and nephew of Virgin’s Sir Richard Branson) succeeded in preventing a national newspaper publishing partially naked photographs of him, despite them having been visible for some time on his friend’s Facebook page.⁵⁸ In *PJS* [2016] a majority of the Supreme Court—somewhat controversially—upheld an injunction preventing publication of the names of a celebrity and his partner allegedly involved in an extramarital threesome, despite widespread knowledge of who the celebrity might be following publication of the information outside the jurisdiction and on social media.⁵⁹

16.4.1.3 Children

The Court of Appeal in *Murray v Express Newspapers plc* [2008] considered the approach to be taken in relation to children.

***Murray v Express Newspapers plc* [2008] EWCA Civ 446 (CA)**

JK Rowling, the author of the Harry Potter books, claimed on behalf of her then 18-month-old son David, after a long-lens photograph of him in his pushchair was published in 2004. Rowling (whose married name is Murray), sought damages for the infringement of David’s right to privacy as well as an injunction to prevent further publication of similar pictures. Her case failed in the High Court. Mr Justice Patten said that the law did not provide for a ‘press-free zone’ (at [66]) for celebrities and their children in respect of everything that they do, adding that ‘an area of routine activity which, when conducted in a public place, carries no guarantee of privacy’.

The Court of Appeal overturned the decision, finding that David had a legitimate expectation of privacy, even while on a public street.

Interestingly, Express Newspapers settled out of court when the claim was still at the High Court—the action survived only against the picture agency that took and supplied the photographs to the newspaper. Giving the judgment of the Court of Appeal, Sir Anthony Clarke said:

As we see it, the question whether there is a reasonable expectation of privacy is a broad one, which takes account of all the circumstances of the case. They include the attributes of the claimant, the nature of the activity in which the claimant was engaged, the place at which it was happening, the nature and purpose of the intrusion, the absence of consent and whether it was known or could be inferred, the effect on the claimant and the circumstances in which and the purposes for which the information came into the hands of the publisher. (at [36])

This interpretation allowed the court to find that the High Court judge had not given enough consideration to the fact that the claimant was a child. Sir Anthony Clarke found that:

p. 467

if a child of parents who are not in the public eye could reasonably expect not to have photographs of him published in the media, so too should the child of a famous parent. In our opinion, it is at least arguable that a child of ‘ordinary’ parents could reasonably expect that the press would not target him and publish photographs of him. The same is true of David, especially since on the alleged facts here the photograph would not have been taken or published if he had not been the son of JK Rowling. (at [46])

Murray suggested that there will always be a legitimate expectation of privacy if you are the (young) child of a famous person, because you cannot be said to have sought celebrity status for yourself.⁶⁰ This argument was used in *AAA v Associated Newspapers Ltd* [2013], where pictures of the infant child claimant were published alongside claims that her father was a famous (even perhaps notorious) politician. The claim was ultimately unsuccessful, largely due to the mother’s inconsistent approach to the level of privacy to be afforded the information; it also raised a matter of general public interest. While children’s interests do not have automatic precedence over others, not only should their *best* interests be considered, but courts should also accord particular weight to the Article 8 rights of any children likely to be affected by a publication, a principle confirmed by the Court of Appeal in *ETK v Newsgroup Newspapers* [2011].⁶¹ *Weller and others v Associated Newspapers Ltd* [2015] confirmed that children may have different expectations regarding their privacy when compared to adults and that these expectations could, in fact, be affected by the actions of the parents, as had been the case in *AAA*.⁶² In *PJS* [2016], the Supreme Court found that the Court of Appeal had failed to adequately consider the impact that the publication of the information would have on PJS’s children.⁶³ The principles are, however, not confined to the children of celebrities.⁶⁴

Whether celebrity *parents* are equally deserving of protection from being photographed going about their ordinary lives is more debatable. Some people feel strongly about this, arguing that if you become famous, you should expect what comes with the territory. As Lady Hale reminded us in *Campbell*, many people are interested in what celebrities look like when they pop to the shops for a pint of milk. With regard to adults, it has seemed that only when to publish photographs or news stories might cause tangible harm does the question of protecting privacy seem to arise.⁶⁵ This appears to include harm to the wider family unit, particularly where children are involved.⁶⁶ Ward LJ in *ETK v Newsgroup Newspapers* [2011] confirmed this in the context of a claim to protect information about an adulterous affair between two ‘entertainment industry’ personalities from being made public (at [22]).⁶⁷ He was prepared to protect their identities because children were involved and because:

there is no political edge to the publication. The organisation of the economic, social and political life of the country, so crucial to democracy, is not enhanced by publication. The intellectual, artistic or personal development of members of society is not stunted by ignorance of the sexual frolics of figures known to the public ... (at [21])

16.4.1.4 Iniquity

When the claimant has done something they shouldn’t (e.g. something illegal) this may justify publication of information which may otherwise seem to be an invasion of privacy.⁶⁸ *Jagger, Contostavlos, Mosley* and *PJS* show that adult sexual activity—even extramarital—is generally considered private.⁶⁹ Cases involving anonymity orders and so-called ‘super-injunctions’⁷⁰—in particular in relation to the sexual activities of famous people—support the idea that the public’s interest (as opposed to public interest) will not always be enough to warrant publication of such stories (or even the names of the individuals concerned): something more is required.⁷¹ The idea of exposing iniquity may also have to be balanced against the risk of intrusion and harassment.⁷²

In *John Terry v Persons Unknown* [2010], this ‘something more’ was the public interest in exposing the affair the claimant was having with his team-mate’s girlfriend, particularly when he was seen as a ‘role model’.⁷³ Terry’s counsel argued, relying on an interpretation of *Mosley*, that private conduct must have been unlawful before it was able to be publicly criticised, but this was rejected.⁷⁴ In *Hutcheson (Formerly Known As ‘KGM’) v News Group Newspapers Ltd and others* [2011], Gross LJ found that information about chef Gordon Ramsay’s father-in-law and business colleague was publishable ‘in the public interest’ where both family and commercial matters were intertwined. Hutcheson had for years maintained a secret second family—one issue was whether he had inappropriately used Ramsay company money to fund the second family and that this, apparently, was one of the reasons his employment had been terminated.

In contrast, the Court of Appeal granted anonymity to ‘a well known sportsman’ (at [7]), though not an injunction protecting the disclosure of certain facts about his infidelities (*JIH v NGN Ltd* [2011]).⁷⁵ Lord Neuberger, giving the judgment of the court, said:

There is obvious force in the contention that the public interest would be better served by publication of the fact that the court has granted an injunction to an anonymous well known sportsman ... than by being told it has granted an injunction to an identified person to restrain publication of unspecified information of an allegedly private nature. (at [33])

In *JIH* the Court of Appeal was apparently swayed that an injunction granting anonymity would better balance the claimant's and public's interests because information was already in the public domain relating to an earlier, similar story about the claimant. Lord Neuberger said that if his identity but not the information was disclosed, the public and the media would easily be able to work out what information the injunction was designed to protect, thus defeating its purpose—it would be a 'classic, if not very difficult, jigsaw exercise' (at [40]).

Pause for reflection

The Supreme Court has found that the right of freedom of expression in relation to legal proceedings means to be able to report them, providing that the reporting is fair and accurate. From *Re Guardian News and Media Ltd* [2010], that right includes being able to *name* those involved rather than simply referring to anonymous people in a disembodied way.⁷⁶ Lord Rodger said: 'if newspapers can identify the people concerned they may be able to give a more vivid and compelling account which will stimulate discussion ... Concealing identities simply casts a shadow over entire communities' (at [65]).

p. 470

↪ In *CDE v MGN Ltd* [2010] Eady J considered a case brought by a married man who 'often appears on television' and his wife, seeking to protect their family from the revelation of a 'virtual' (i.e. via text message, email, etc) affair he had briefly conducted with another woman (the second defendant in this case—who had been persuaded by a journalist to sell her story to the *Sunday Mirror*). The claimants had always, it was found, 'guarded their private lives closely' and 'never sought publicity'.⁷⁷ They were granted anonymity, though this was *also* extended to several individuals not actually party to the case, including the couple's teenage children, the child of the second defendant *and* one of the journalists on the defendant newspaper, the second defendant's solicitor and her 'publicity advisor'! Is this taking anonymity too far?

Concealing one or other feature of a case may, however, be more favourable in the interests of 'open justice' than the granting of 'super-injunctions'.⁷⁸ Surely allowing the press to publish *something* is preferable to restrictions on publishing *anything*?⁷⁹ This was addressed by a committee chaired by Lord Neuberger MR which considered the use of super-injunctions (as well as interim injunctions and anonymity orders) in the wake of concerns expressed in Parliament, the media, the courts and by the public following the *Trafigura*⁸⁰ and John Terry super-injunctions.⁸¹ It recommended that:

exceptions to the principle of open justice will only be allowed when they are strictly necessary in the interests of justice, and that when allowed they will go no further than is strictly necessary. This should mean that super-injunctions will only be granted in very limited circumstances and, at least normally, for very short periods of time. (p ii)

Further, any derogations from the principles of open justice would have to be justified by the claimant and it was envisaged that this would be 'a heavy burden'.⁸² That said, in February 2017, reports emerged of a new super-injunction, preventing publication of any information which might lead to the identity of the celebrity involved, including their gender and what they are famous for.⁸³ The *Sunday Times* reported that it had initiated legal proceedings. Nevertheless, the identity of the celebrity concerned was leaked by overseas media outlets.⁸⁴

p. 471 **16.4.2 Does the claimant's interest in maintaining their right to privacy outweigh the defendant's interest in freedom of expression?**

Once reasonable expectation of privacy is established, the second part of the test asks whether the claimant's interest in maintaining their right to privacy outweighs the defendant's interest in freedom of expression (i.e. the ability to publish the information). In *Jagger*, Bell J said there was 'no legitimate public interest in further dissemination of the images which could serve only to humiliate the claimant for the prurient interests of others' (at [14]).⁸⁵ Similarly, in *ABK v KDT and another* [2013], in the context of a 'revenge porn' harassment claim, the female claimant was granted an injunction in respect of personal photographs and information held (and threatened to be disclosed to friends, family and her employer) by the defendant, with whom she had had an extramarital affair. In *AJS v News Group Newspapers Ltd* [2017], Nicol J granted an injunction to prevent *The Sun* newspaper from naming a famous individual (AJS), a witness in a serious police investigation into allegations of a 'serious criminal offence' that took place at AJS's home in February 2017,⁸⁶ finding there to be no public interest in publishing AJS's private details.

In *ZXC v Bloomberg LP* [2020], the Court of Appeal upheld a decision preventing the publication of confidential information obtained from a law enforcement agency investigating the activities of a businessman. Giving judgment for the Court of Appeal, Simon LJ said:

I would take the opportunity to make clear that those who have simply come under suspicion by an organ of the state have, in general, a reasonable and objectively founded expectation of privacy in relation to that fact and an expressed basis for that suspicion. The suspicion may ultimately be shown to be well-founded or ill-founded, but until that point the law should recognise the human characteristic to assume the worst (that there is no smoke without fire); and to overlook the fundamental legal principle that those who are accused of an offence are deemed to be innocent until they are proven guilty. (at [82])

In what proved to be a defining case in this contentious area, an appeal by Bloomberg to the Supreme Court was dismissed.⁸⁷ This confirms the approach that, as a matter of general principle, investigations by law enforcement agencies may *only* be reported where there is a proven public interest justification.⁸⁸

Essentially this becomes a battle between privacy and freedom of expression: these concepts must be balanced to determine the outcome. The following section explores the way misuse of private information claims have developed, as affected by human rights considerations.

p. 472 16.4.3 The Human Rights Act 1998 and European case law

Lord Irvine (then the Lord Chancellor) said, during parliamentary debate on the Human Rights Bill, that:

judges are pen-poised regardless of the incorporation of the Convention to develop a right of privacy to be protected by the common law ... it will be a better law if the judges develop it after incorporation because they will have regards to Articles 8 and 10, giving Article 10 its due high value ... I believe that the true view is that the courts will be able to adapt and develop the existing domestic principles in the laws of trespass, nuisance, copyright, confidence and the like to fashion a common law right to privacy.⁸⁹

Human Rights Act 1998, s 12(4)

The court must have particular regard to the importance of the Convention right to freedom of expression and, where the proceedings relate to material which the respondent claims, or which appears to the court, to be journalistic, literary or artistic material (or to conduct connected with such material), to—

- (a) the extent to which—
 - (i) the material has, or is about to, become available to the public; or
 - (ii) it is, or would be, in the public interest for the material to be published;
- (b) any relevant privacy code.

Section 12(4) of the HRA *requires* courts to undertake a balancing exercise when considering the competing rights from Articles 8 and 10 ECHR. Section 12 is, however, headed ‘freedom of expression’ and applies when ‘a court is considering whether to grant any relief which, if granted, might affect the exercise of the Convention right to freedom of expression’ (s 12(1)). Clearly, granting someone a remedy for infringement of their privacy (e.g. by the press) may have an effect on freedom of expression. Section 12 appears to prioritise this freedom above the right to privacy, by assigning it special status.⁹⁰ However, later cases tell us that the two rights are to be treated equally.⁹¹

p. 473 Section 6(1) of the HRA makes it ‘unlawful for a public authority to act in a way which is incompatible with a Convention right’. Courts and tribunals are ‘public authorities’ (s 6(3)), as is ‘any person certain of whose functions are functions of a public nature’, which may include organisations such as IPSO and Ofcom. Furthermore, section 7 of the HRA allows individuals to bring proceedings in domestic courts against any public authority that has acted in contravention of a Convention right. This means that citizens may claim in domestic courts that their right to private and family life, granted by Article 8(1) ECHR, has been infringed by a public authority or other who falls within the definition in section 6. However, ↵ when proceedings relate to ‘journalistic, literary or artistic material’ (i.e. information about someone’s private life being published in some way),⁹² section 12 comes into play, and the court must weigh up whether giving relief for the invasion of privacy would unjustifiably impact on freedom of expression.

Pause for reflection

In *Wainwright* Lord Hoffmann, referring to ECtHR jurisprudence, remained unconvinced that a general privacy principle was required. Instead, he said, domestic courts could provide an adequate remedy for invasions of privacy made contrary to Article 8 ECHR. In this context, he described sections 6 and 7 of the HRA as ‘substantial gap fillers’ (at [34]), suggesting that in conjunction with Article 8(1) the job of protecting privacy could be done adequately, without the need to create a free-standing tort.

He concluded his speech saying that:

a finding that there was a breach of Article 8 will only demonstrate that there was a gap in the English remedies for invasion of privacy which has since been filled by sections 6 and 7 of the 1998 Act. It does not require that the courts should provide an alternative remedy which distorts the principles of the common law. (at [52])

Lord Hoffmann seems to suggest that invasion of privacy is a harm that has always been recognised—but that the law had not always provided suitable remedies when the harm occurred, and it is this remedial gap that was filled by the HRA. Do you agree? Consider cases decided since the coming into force of the Act—have the decisions become any easier for judges to make? Are they making the right decisions and providing the right remedies for the right claimants?

Check our **pointers** <<https://iws.oup.support.com/ebook/access/content/horse9e-student-resources/horse9e-chapter-16-pointers-to-pause-for-reflection-and-counterpoint-boxes?options=showName>> on how to answer the questions posed in this ‘pause for reflection’.

The most notable ECtHR decision in the context of evolving judicial attitudes to privacy came in *Von Hannover v Germany* [2004]. This judgment was handed down a short time after *Campbell* and remains influential in determining how judges should balance Article 8 and 10 rights.

***Von Hannover v Germany* (App No 59320/00) [2004] EMLR 21 (ECtHR)**

Princess Caroline of Monaco alleged that media intrusions into her daily routine violated her rights under Article 8. Princess Caroline has celebrity status in much of Europe—she is the daughter of the late Prince Rainier III of Monaco and his wife, the late American film actress Grace Kelly, and was the presumptive heir to the throne of Monaco. She claimed that paparazzi photographs of her undertaking daily activities, including some which showed her children, were an invasion of her right to private, home and family life. She had previously claimed in the German courts, but had failed on the grounds that, as a public figure *par excellence*, she should expect members of the public to take an interest in her daily life.

The ECtHR upheld her claim, holding that the key issue when weighing up the rights under Articles 8 and 10 was to ask how far the information being published would be in the ‘public interest’, which the judges found was different from what the public might genuinely be interested in. They also distinguished between Princess Caroline’s public functions and private life. Clearly, they said, when performing or attending a public function, there would be a legitimate public interest in pictures of her being published but, when going about her private life, she had a ‘reasonable expectation’ of privacy.⁹³

Both the Article 8(1) ECHR right to private and family life, home and correspondence and the Article 10(1) ECHR right to freedom of expression are ‘qualified’ rights, meaning that while they must be protected by the state, certain things (listed in Arts 10(2) and 8(2), respectively) are considered legitimate infringements of a person’s exercise of that right. Among other things, Article 10(2) states that the right to freedom of expression may be curtailed in the public interest (e.g. in the interests of national security) or where other, competing, individual rights are at stake (e.g. the right of people to protect their reputations or to prevent the disclosure of information given in confidence). So, at the outset, neither right is absolute. Each right impinges on the other, particularly in the context of claims about media invasions of privacy. The media, as part of a democratic society, has a vital role to play in disseminating information. The question is how far the press can go—especially into someone’s ‘private’ affairs—before they are deemed to have gone ‘too far’.⁹⁴

Pause for reflection

What does ‘private and family life’ encompass? In *Niemietz v Germany* [1993] the ECtHR deemed it neither ‘possible nor necessary to’ attempt an exhaustive definition (at [29]). The Court added:

However, it would be too restrictive to limit the notion to an ‘inner circle’ in which the individual may live his own personal life as he chooses and to exclude therefrom entirely the outside world not encompassed within that circle. Respect for private life must also comprise to a certain degree the right to establish and develop relationships with other human beings.

Thus, it seems that one’s ‘inner circle’, at least, may be protected, as well as—to a degree—one’s relationships with others, but each case will be decided on its own facts.

How far do you think one’s private and family life extends? Is this the same for ordinary citizens and for celebrities? Clearly there is no right or wrong answer to this—people have their own perceptions about how far celebrities open themselves up to invasions of privacy. It is likely that there is a ‘spectrum’ of private information: ranging from the very private (e.g. an evening spent at home with one’s young children) to less private (e.g. being seen at a public event). But celebrity lifestyles make for difficult cases. For instance, where on the spectrum would a celebrity’s wedding sit if the kind of measures Michael Douglas and Catherine Zeta-Jones took to try and keep it private were not used? What about Prince Harry and Meghan Markle’s private lives, after the televised interview on *Oprah* and the publication of Prince Harry’s memoir?⁹⁵

Watch our video ‘Why what happens with Harry and Meghan matters’ for a brief history of privacy, royalty and being human.

Video playback is not supported in this format.

Video 16: Why what happens with Harry and Meghan matters

Lord Hoffmann once described freedom of expression as ‘the trump card that always wins’ (*R v Central Independent Television plc* [1994] at 203). It appears highly unlikely that the statement is true today—if it was then. In a fresh look at the balance of freedom of expression against privacy, in *Campbell*, he said that there is ‘no question of automatic priority. Nor is there a presumption in favour of one rather than the other’ (at [55]). The House of Lords in *Re S* [2005] found the correct approach when both Article 8 and Article 10 rights are involved to be:

[f]irst, neither Article as such has precedence over the other. Secondly, where the values under the two Articles are in conflict, an intense focus on the comparative importance of the specific rights being claimed in the individual case is necessary. Thirdly, the justifications for interfering with or restricting each right must be taken into account. Finally, the proportionality test—or ‘ultimate balancing test’—must be applied to each. (Lord Steyn at [17])

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By 2006, in *McKennitt v Ash*, it was acknowledged that both Articles 8 and 10 ECHR are ‘now the very content of the domestic tort that the English court must enforce’ (at [11]). In *PJS* [2016], the Supreme Court restated that neither Article takes precedence—justifications for and the proportionality of interfering with each Article should be considered on the facts. In *Ali and another v Channel 5 Broadcast Ltd* [2018], for example, though the broadcast complained of highlighted a debate of general public interest,⁹⁶ this was considered to be outweighed by the invasion of private life suffered by the claimants.⁹⁷ Similarly, in *Richard v BBC* [2018], Mann J found that:

It does not follow that, because an investigation at a general level was a matter of public interest, the identity of the subject of the investigation also attracted that characterisation. I do not think that it did. Knowing that Sir Cliff was under investigation might be of interest to the gossip-mongers, but it does not contribute materially to the genuine public interest in the existence of police investigations in this area. (at [282])

The BBC’s interest in freedom of expression was not found to have outweighed the claimant’s right to privacy. This was in part because reporting on allegations against someone in Sir Cliff Richard’s position would cause ‘very serious’ consequences for him, particularly bearing in mind:

the failure of the public to keep the presumption of innocence in mind at all times [which] means that there is inevitably going to be stigma attached to the revelation, which is magnified in this case by the nature of the allegations against him, which were allegations (especially in the then climate) of extreme seriousness. (at [316])

Test your understanding by trying this section’s self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-16-4>.

16.5 Limits to the current protection

Today, our right to privacy is protected by the *tort of misuse of private information* underpinned by the Article 8 ECHR right to privacy, balanced against competing considerations of freedom of expression from Article 10 ECHR. Cases must always entail a careful balancing of these interests, as has been discussed earlier.⁹⁸ However, despite the developments outlined, the limits to the protection that can be offered remain clear. This is particularly evident in non-celebrity, non-publication cases, for example *Wainwright* and *Peck*.

In *Wainwright*, the claimants sued the Home Office for invasion of their privacy (as well as in trespass to the person),⁹⁹ following a ‘sloppily’ performed strip-search conducted when visiting a family member in prison. The House of Lords stated categorically that no tort of invasion of privacy exists,¹⁰⁰ reiterating the feeling of the time that it was an interest that could, and should, only be protected by using other existing legal mechanisms (as in *Kaye*). *Wainwright* failed because there was no question of there being any private information (or photographs) being disclosed: it did not fall into the same category of ‘privacy’ (or

p. 477 confidence) that had by then been recognised, even though what happened to Mrs Wainwright was a clear invasion of her privacy (in terms of personal autonomy) in the commonly understood sense. Note, however, that if prison visitors were treated the same way today, an action would lie directly against the Home Office under the HRA—this was later confirmed by the ECtHR in *Wainwright v UK* [2006], where violations of Articles 8 and 13 ECHR were found.

***Peck v UK* (App No 44647/98) (2003) 36 EHRR 41 (ECtHR)**

Peck was filmed on CCTV in a town centre trying to commit suicide with a knife. The police detained him under the Mental Health Act. He was later released. His claim arose after the CCTV footage of him was used by the local authority and passed to TV and newspapers to demonstrate the effectiveness of the CCTV system. Although his face was somewhat obscured when the images of him were published, people who knew him could recognise him, and he alleged this infringed his right to privacy. He complained to the predecessor of Ofcom and to the local authority but his claims were dismissed. He then took his case to the ECtHR alleging breaches of his Article 8 and 13 rights.¹⁰¹ The government relied on the fact that the information had lost any characteristic of confidentiality as it was already in the public domain—that is, Mr Peck's actions were committed in public.

The ECtHR found that Article 8 had been violated as, although his actions were in a public place, showing him on TV and in newspapers was not the same as him being seen by passers-by. The relevant moment was judged to have been 'viewed to an extent which far exceeded any exposure to a passer-by or security observation' (at [53]). Consequently, as no remedy had been provided in UK law, there was also a breach of Article 13.¹⁰²

Thus, it appears that even where breach of confidence or misuse of private information is an inadequate means of providing a remedy for invasion of privacy, a human rights claim may still be fruitful.

Counterpoint

It is arguable that a gendered issue exists in the developed domestic law relating to privacy. While it has become apparent that a perceived 'harm' will attract judicial protection under what can loosely be termed Article 8 principles—in that privacy appears to override freedom of expression when to invade the private sphere would or could cause 'harm' in some way (e.g. a set-back in drug rehabilitation or health (*Campbell*), right to life issues (*Venables*; *Peck*), breach of a contractual obligation (*Douglas*), concern for children (*Bell*; *Murray*))—these are all harms that the law might find it fairly easy to recognise and, as such, deem 'deserving' of protection.

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↵ But when the claimant's harm becomes less tangible, such as the mere 'distress' suffered by Mrs Wainwright, the sympathetic application of Article 8 by the domestic courts seems to greatly diminish.¹⁰³ As with other areas of tort law, *who* is protected turns on what is understood as 'harm'.¹⁰⁴ '[p]erceptions of harm are closely linked to law, and legal recognition—in the form of a right to redress—is a key signifier that harm has been incurred'.¹⁰⁵ Moreover, judicial reluctance to widen the scope of the nascent privacy laws—to include privacy-related harms such as those suffered by Mrs Wainwright—may well have gender implications, as restrictions are placed on recovery in relation to harms which (historically at least) tend to be associated with (although, of course, not exclusively suffered by) women (especially mothers).¹⁰⁶

Test your understanding by trying this section's self-test questions <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-16-5>.

16.6 Conclusion

As we have seen, there was a long-standing reluctance on the part of both Parliament and the judiciary to create a specific tort of invasion of privacy. Early cases had to be moulded into legal actions that did not necessarily fit and, it seems, could offer little protection even when they did (*Kaye*). Largely, the problems stemmed from difficulty in defining (or unwillingness to define) what the right to protect one's privacy would encapsulate.

However, cases such as *Douglas* and *Campbell* shaped the (equitable) principle of breach of confidence into a tort of misuse of private information (as confirmed in *Google Inc v Vidal-Hall and others* [2015]). To establish the tort, a claimant must establish that they had a legitimate expectation of privacy and this must be balanced against the defendant's interests. This brings into sharp focus (and in fact the development of the law has been shaped by) human rights considerations. A right to private life is enshrined in the ECHR and by the HRA in domestic law. However, rights must be balanced against competing rights and here the right to freedom of expression becomes important (HRA, s 12(4)). Each must be weighed against the other, according to the facts of each case.

End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

- 1 Why do you think the judiciary and various governments in the UK have been so reluctant to formulate a specific law relating to the invasion of privacy?

2

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Look at the cases that revolve around invasions of privacy (e.g. **Von Hannover**, **Douglas**, **Campbell**, **Murray**, **Mosley**, **Richard**, **Duchess of Sussex**). How many of the claimants in these cases really had a 'reasonable expectation of privacy' in respect of the information they did not want to be in the press? Can you define 'a reasonable expectation of privacy' any more easily than 'privacy'?

- 3 What harm(s) does the law find should be recognised as invasion of privacy? Is there any common element among the successful cases?

If you would like to know what we think, check the **answer guidance** <https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-16-answers-to-end-of-chapter-questions?options=showName>.

Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about the topic, **what would be your advice to Elizabeth and Alessandro?**

Here are some pointers to get you started:

→ E will want to claim against the photographer for the invasive photographs (perhaps also on behalf of her sister and niece). Following **Campbell**, the first issue is whether she (and the others) can be said to have had a reasonable expectation of privacy in that situation. There is much case law (including **Campbell** itself) that can be used in the analysis. It may be different for E and for the children (**Murray**; **Weller**). If there is a reasonable expectation of privacy then her interest in keeping the information private (derived from Art 8 ECHR) must be weighed against any potential public interest in publication (derived from Art 10 ECHR).

→ E and A will want to claim against *Peachy*! The situation is similar but not the same as that in **Douglas v Hello!** The question is still whether there was a reasonable expectation of privacy—this was demonstrated in **Douglas**. But would it be here?

→ A may want to seek an injunction to prevent publication of the story about his alleged affair. The purpose of injunctions must be considered against the implications for freedom of speech. Many cases are similar and relevant (particularly in the context of private sexual relationships) and should be analysed to come to a conclusion on whether or not an injunction would be justified.

If you need some more guidance:

→ See the **annotated version of the problem with issues and cases to consider** <https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-16-annotated-problem-question-interactive>.

→

Check your answer against the **suggested outline answer** <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-16-answers-to-problem-question>>.

Further reading

Much has been written on the subject of privacy in recent years, many articles focusing on a particular case or cases. A good place to start is with some of the general comment pieces, such as by Aplin or McLean, or with Bennett's theoretical explorations of 'horizontal privacy' post-**Campbell**. Hargreaves writes an interesting article focusing on relational harm in the privacy context. Phillipson and Craig bring us right up to date analysing the controversial case of *ZXC v Bloomberg*. Unfortunately, as the law in this area moves so fast, some of the writing, even the more recent articles, may need updating! ↵

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Aplin, Tanya 'The Development of the Action for Breach of Confidence in a Post-HRA Era' [2007] Intellectual Property Quarterly 19

Bennett, Thomas 'Corrective Justice and Horizontal Privacy: A Leaf out of Wright J's Book' (2010) 7 The Journal of Jurisprudence 545

Bennett, Thomas 'Horizontality's New Horizons—Re-Examining Horizontal Effect: Privacy, Defamation and the Human Rights Act: Part 1' (2010) 21 Entertainment Law Review 96

Bennett, Thomas 'Horizontality's New Horizons—Re-Examining Horizontal Effect: Privacy, Defamation and the Human Rights Act: Part 2' (2010) 21 Entertainment Law Review 145

Eady, Mr Justice, Speech at University of Hertfordshire, 10 November 2009 (available from Judiciary of England and Wales website)

Hargreaves, Stuart "'Relational Privacy" and Tort' (2017) 23 William & Mary Journal of Women and the Law 433

Martin, Steve, 'Mud Sticks: Publication of Information About Pre-Charge Criminal Investigations and the Tort of Misuse of Private Information' [2022] Cambridge Law Journal 232

McLean, Angus and Claire Mackey 'Is there a Law of Privacy in the UK? A Consideration of Recent Legal Developments' (2007) 29 European Intellectual Property Review 389

Moreham, Nicole 'Privacy in Public Places' [2006] Cambridge Law Journal 606

Moreham, Nicole 'Unpacking the Reasonable Expectation of Privacy Test' (2018) 134 Law Quarterly Review 651

Moreham, Nicole 'Privacy and Police Investigations: *ZXC v Bloomberg*' [2021] Cambridge Law Journal 5

Morgan, Jonathan 'Privacy in the House of Lords, Again' (2004) 120 Law Quarterly Review 563

Neuberger, Lord PSC "'What's in a name?"—Privacy and anonymous speech on the Internet' Conference 5RB Keynote speech, 30 September 2014

Phillipson, Gavin and Robert, Craig 'Privacy, Reputation and Anonymity Until Charge' (2022) 13 Journal of Media Law 153

Richardson, Janice 'If I Cannot Have Her Everybody Can: Sexual Disclosure and Privacy Law' in Janice Richardson and Erika Rackley (eds) *Feminist Perspectives on Tort Law* (Routledge 2012) 145–62

Schreiber, Arye 'Confidence, Crisis, Privacy Phobia: Why Invasion of Privacy Should Be Independently Recognised in English Law' [2006] 2 Intellectual Property Quarterly 160

Additional suggestions for further reading can be found in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-16-web-links?options=showName>>.

Notes

¹ See BBC News 'Prince Harry to be paid "substantial damages" by Sun owner as it apologises for "serious intrusion"' 22 January 2025; Jonathan Coad 'Prince Harry vs News UK: who won?' *Inform's blog* 28 January 2025; *HRH The Duchess of Sussex v Associated Newspapers Ltd* [2021]; *The Duke of Sussex and others v MGN Ltd* [2023].

² However, none of these protects an individual's privacy per se and all are limited in the protection offered. E.g. despite protectionist in-roads made in *Khorasandjian v Bush* [1993], since ***Hunter v Canary Wharf* [1997]** individuals require a proprietary interest in land to claim in private nuisance (**section 18.3.2**). Similarly, for recovery under the 1997 Act, there must be a 'course of conduct' that amounts to harassment (**section 15.6.2**).

³ *Vidal-Hall and others v Google Inc* [2014].

⁴ The complete text of the Bills is available in the appendix of the Younger Report.

⁵ *Report of the Committee on Privacy*, Chairman: Kenneth Younger (Cmnd 5012, 1972).

⁶ *(Third) Royal Commission on the Press* (Cmnd 6810, July 1977).

⁷ Bill on Protection of Privacy and Right of Reply introduced by John Browne MP and Tony Worthington MP.

⁸ *Committee on Privacy and Related Matters Report of the Committee on Privacy and Related Matters*, Chairman: David Calcutt (Cm 1102, June 1990).

⁹ *Privacy and Media Intrusion* (Cm 2918, July 1995).

¹⁰ This was rejected by the government at the time (*Privacy and Media Intrusion: Replies to the Committee's Fifth Report 2002–2003, First Special Report* (HC 213, February 2004)).

¹¹ Culture, Media and Sport Committee 'Self Regulation of the Press' Seventh Report of Session 2006–2007 (HC 375, July 2007) [53].

¹² Thomas Cooley *Cooley on Torts* (2nd edn 1888) 29; SD Warren and LD Brandeis 'The Right to Privacy' (1890) 4 Harvard Law Review 193, 205.

¹³ Percy H Winfield 'Privacy' (1931) 47 Law Quarterly Review 23.

- ¹⁴ William L Prosser 'Privacy' (1960) 48 California Law Review 383, 389. See *Fenty and others v Arcadia Group Brands Ltd and others* [2015]—otherwise known as *Rihanna v Topshop*—where the singer successfully sued the retailer for unauthorised use of her image on a vest top.
- ¹⁵ See e.g. the US *Restatement (Second) of Torts* (2010), especially s 652B.
- ¹⁶ See Lisa O'Carroll and Caroline Davies 'William and Kate win French injunction over topless photos' *The Guardian* 18 September 2012.
- ¹⁷ Interestingly, other common law jurisdictions do not seem to have the same problem. The Ontario Court of Appeal recognised a common law tort of invasion of privacy in *Jones v Tsige* [2012]. Other Canadian provinces have statutory privacy torts. In *Doe 464533 v ND* [2016], the Ontario Superior Court of Justice recognised a tort of 'publication of embarrassing private facts'. In New Zealand, the tort was recognised in *Hosking v Runting* [2004] as was a further tort of 'intrusion on seclusion' in *C v Holland* [2012].
- ¹⁸ At 10.
- ¹⁹ At [54].
- ²⁰ The PCC operated an Editors' Code of Practice addressing invasions of privacy (clause 3), including, e.g. guidance restricting the use of long-range lenses and in relation to people grieving, children and people in hospital.
- ²¹ *Sara Cox v MGN Ltd* [2003].
- ²² Lord Justice Leveson, *Report into the Culture, Practices and Ethics of the Press* (2012). See especially from p 219 (and in the Executive Summary from p 12).
- ²³ This was Part 1 of the Leveson Inquiry—Part 2, also requested by David Cameron, cannot begin until criminal proceedings stemming from Part 1 are concluded. From November 2016 to January 2017 the Department for Culture, Media & Sport and the Home Office opened a new consultation asking in part 'whether it is still appropriate, proportionate and in the public interest' to go ahead with Part 2. In March 2018, the government controversially confirmed that Part 2 of the Inquiry would not go ahead.
- ²⁴ See e.g. Patrick Wintour and Dan Sabbagh 'Leveson Report: David Cameron refuses to "cross Rubicon" and write press law' *The Guardian* 29 November 2012; Lisa O'Carroll 'Leveson debate prompts criticism over "draconian" punitive damages plan' *The Guardian* 11 January 2013.
- ²⁵ Department for Culture, Media and Sport 'Leveson Report: Final draft Royal Charter for proposed body to recognise press industry self-regulator' (Policy paper) 11 October 2013. See also Patrick Wintour 'Press regulation: a back-channel deal sealed with a 3am text message' *The Guardian* 18 March 2013; Patrick Wintour, Lisa O'Carroll and Nicholas Watt 'Press regulation: newspapers bridle at "historic" deal' *The Guardian* 19 March 2013.
- ²⁶ Royal Charter, art 2.2.
- ²⁷ e.g. in September 2016 it upheld a breach of privacy complaint from the Duchess of Cambridge (now Princess of Wales) after she objected to online publications about herself and Prince George (Press Association 'Duchess of Cambridge has privacy breach complaints upheld' *The Guardian* 15 September 2016).
- ²⁸ Ofcom, the independent regulator for the UK communications industries—with responsibilities across television, radio, telecommunications and wireless communications services—has similar powers in that it can issue fines and withdraw licences from repeat offenders. One principal duty, established under statute (Communications Act 2003), is maintaining 'adequate protection for audiences against unfairness or the infringement of privacy'.

- ²⁹ IMPRESS was recognised by the Press Recognition Panel in 2016.
- ³⁰ Note that unless or until the government decides to implement s 40 of the Crime and Courts Act 2013, there is no sanction for publishers who do not sign up as members of a formally recognised regulator.
- ³¹ IMPRESS has more guidance on the use of social media by journalists than IPSO. An interesting take on this is the use of social media as a *source* of information, especially by regional publications. See e.g. Hold the Front Page ‘Law Column: IPSO and the use of social media as a source’ 31 January 2017. Two courts in Northern Ireland have given potentially significant judgments on the civil liability of social media companies for content posted by users: see *J20 v Facebook Ireland* [2016] and *CG v Facebook Ireland & McCloskey* [2015]. However, a data protection/misuse of private information claim brought by a child claimant against social media platform TikTok, which passed the first procedural hurdles (*SMO v TikTok Inc and others* [2022]) has since been discontinued.
- ³² See *Kerry Ingredients (UK) Ltd v Bakkavor Group Ltd and others* [2016], concerning the recipes for flavour-infused cooking oils. Cf *Wade & Perry v British Sky Broadcasting Ltd* [2016] where the Court of Appeal found that Sky did not misuse confidential information in commissioning a music talent show with multiple similarities to one pitched to it previously by the claimants. See also *Brevan Howard Asset Management LLP v Reuters Ltd and another* [2017] where the Court of Appeal upheld the confidential nature of information provided to potential hedge fund investors.
- ³³ See also *British Broadcasting Corporation & Eight Other Media Organisations, R (on the application of) v F & D* [2016], regarding anonymity of the teenage girls who murdered Angela Wrightson and a clampdown on social media reporting of the trial (by news agencies and members of the public). In December 2016, two brothers who tortured three other children in South Yorkshire (when they were aged only 10 and 11) were granted lifelong anonymity, also for their own protection (see BBC News ‘Edlington boy torturers granted anonymity’ 9 December 2016 and *A & B v Persons Unknown* [2016]).
- ³⁴ See, in respect of criminal penalties that can be applied for violation of the injunction, ‘Two narrowly avoid jail after sharing “photos of James Bulger killer” online’ *The Telegraph* 31 January 2019. In 2019, an application to vary the confidentiality order from 2001 (preventing Venables’ identification) was refused by Sir Andrew MacFarlane, President of the Family Division, on the grounds that Venables’ Arts 2 and 3 rights outweighed the applicant’s Arts 8 and 10 rights: *Venables and another v News Group Papers Ltd and others* [2019].
- ³⁵ *Persons formerly known as Winch and others (application for contra mundum injunction)* [2021].
- ³⁶ See further discussion of ‘responsible publication on a matter of public interest’ in the context of defamation (**section 17.6.3**).
- ³⁷ See Robert Mendick ‘Sir Philip Green backs down: the inside story of the court case that never was’ 8 February 2019; *Arcadia Group Ltd and others v Telegraph Media Group Ltd* [2019].
- ³⁸ Similar issues arise in relation to defamation claims—see **section 17.3** and the Pause for reflection box there.
- ³⁹ Claire Newell ‘The British #MeToo scandal which cannot be revealed’ *The Telegraph* 25 October 2018.
- ⁴⁰ Richard Moorhead, ‘New York, London, Paris,* Munich,. [sic] Everyone’s talking about ... Linklaters’ *LawyerWatch* 6 February 2019.
- ⁴¹ Though, ironically perhaps, the ECtHR ruled that the *Daily Mirror*’s right to freedom of expression was violated by having to pay the £1 million legal costs (partly lawyers’ ‘success fees’) when it lost the original case (*MGN Ltd v UK* [2011]). Similar arguments have arisen in other cases considering Conditional Fee Agreements (CFAs) and After the

Event (ATE) insurance (see **Chapter 21**). In *8 Representative Claimants and others v MGN Ltd* [2016] (*The Mirror* ‘phone hacking’ case), Mann J found that the regime permitting the recovery of the additional liabilities was compatible with Art 10 ECHR (see also *Miller v Associated Newspapers* [2016]). Both defendants were granted ‘leapfrog’ permission to appeal so that the issues could be considered by the Supreme Court alongside the appeal of *Flood v Times Newspapers* [2014] (considering whether having to pay the entire costs of the other side, including success fees and ATE premiums arising from a CFA (amounting to nearly £1.7 million, before interest), in a libel case in which it was partly successful, violated the defendant’s Arts 6 and 10 rights). In April 2017, the Supreme Court unanimously dismissed all three appeals (*Times Newspapers Ltd and others v Flood and others* [2017]).

⁴² Arden LJ (at [12]). What defeated OPO’s claim on this point was that the information to be published, though it would potentially affect him, was not *about* him (at [45]). A Supreme Court decision ultimately allowed full publication of the book (***Rhodes v OPO (by his litigation friend BHM) and another* [2015]**); see further **section 15.6.1**).

⁴³ This ‘two-stage test’ was recently explicitly confirmed by the Supreme Court in *Bloomberg LP (Appellant) v ZXC (Respondent)* [2022].

⁴⁴ See also e.g. *Loreena McKennitt v Niema Ash* [2006]; *HRH Prince of Wales v Associated Newspapers Ltd* [2008]. An interesting issue may arise in relation to this in the context of ‘deadnaming’—see Izzy Lyons ‘Transgender lawyer launches UK’s first “deadnaming” case against Father Ted writer Graham Linehan’ *The Telegraph* 7 October 2018.

⁴⁵ This is similar to, yet different from, the formulation in the US *Second Restatement of Torts* and the Australian case of *Australian Broadcasting Commission v Lenah Game Meats* [2001]: that disclosure must be ‘highly offensive to the reasonable person’ (Gleeson CJ at [42]). In ***Campbell***, Lord Nicholls said that the phrase ‘highly offensive’ should not be relied on as it suggested a stricter test than ‘reasonable expectation of privacy’ and ‘could be a recipe for confusion’ (at [22]).

⁴⁶ It also seems that the identity of a secret blogger is not obviously private, particularly when the blog in question criticised the internal workings of the police force from an insider’s perspective: see *Author of a Blog v Times Newspapers Ltd* [2009].

⁴⁷ Would this be the case for the pop singer, in the scenarios outlined at the beginning of this chapter? If so, would her right to privacy outweigh the newspaper’s freedom of expression? Would this depend on anything she had said/done in relation to eating disorders before?

⁴⁸ See also James Gant ‘Channel 5 pays “substantial” damages to woman who appeared on “Can’t Pay? We’ll Take it Away” after she took legal action over “misuse of private information” when she was filmed in row over unpaid parking fine’ *Mail Online*, 16 November 2021.

⁴⁹ *Brake v Guy and others* [2022].

⁵⁰ Though in that case the application for an injunction to prevent the photographs in question being republished was denied.

⁵¹ *ERY v Associated Newspapers Ltd* [2016]. See also *WFZ v British Broadcasting Corporation* [2023].

⁵² See also *NT1 & NT2 v Google LLC* [2018].

⁵³ *News of the World* ‘F1 boss has sick Nazi orgy with 5 hookers’ 30 March 2008. Mosley sued for both aggravated (punitive) and compensatory damages (see **section 21.2**) but was awarded only compensatory damages, plus costs. The award was £60,000, reported to be over three times higher than the previous highest privacy award (though note

that the BBC reported that the same judge awarded Hugh Grant, Liz Hurley and Arun Nayar £58,000 in May 2008 in a case concerning long-range photographs of them on a private beach (BBC News ‘Grant and Hurley Win Privacy Payout’ 17 May 2008)). These awards—thought to mark the ceiling of what may be awarded in privacy claims—were overtaken in *Gulati and others v MGN* [2016] where significant payments ranging from £72,500 to £260,250 were ordered following the serious and repeated criminal invasions of privacy in the ‘celebrity’ phone-hacking cases. Now, the highest award seems to have been made to Sir Cliff Richard, who was awarded £210,000 general and aggravated damages, plus an amount for special damages (see **Chapter 21**) to be later determined (*Richard v BBC and another* [2018]). South Yorkshire Police, the second defendant in the case, had already settled the case for £400,000 plus costs in 2017. Prince Harry, one of several claimants against Mirror Group Newspapers, was awarded £140,600 in part of his ongoing campaign against the tabloid press (*The Duke of Sussex and others v MGN Ltd* [2023]), though also in January 2025 he achieved an apology and settlement said to amount to around £10 million from News Group Newspapers for ‘serious intrusion’ into his private life (including obtaining information by unlawful means). In contrast, an award of just £5,000 was ordered in *Burrell v Clifford* [2016]. The case illustrates potential issues about access to justice and the fact that claimants with ‘low value’ claims would find it hard to take cases if normal costs rules were not followed.

⁵⁴ See also *Contostavlos v Mendahun* [2012].

⁵⁵ In 2008, Mosley asked the ECtHR to uphold a right to prior notification—that is, for the government to pass a law obliging newspapers, etc to warn people in advance when intimate or sexual details were about to be published. His claim was rejected (*Mosley v UK* [2011] at [119]), though he was unwilling to concede defeat. In *Mosley v Google* [2015], he defeated Google’s arguments that his claim under the Data Protection Act should be struck out, meaning that Google must block images of the original photographs via its search engine. The case was later settled out of court.

⁵⁶ Also confirmed by the Supreme Court in *PJS* [2016] and reiterated in *XLD v KZL* [2020], *BVG v LAR* [2020], *JRV & ARC v BRG* [2023] and *WFZ v British Broadcasting Corporation* [2023].

⁵⁷ However, publication of photographs depicting the event was prohibited. See also *A v B plc* [2002]; *BBC v HarperCollins Publishers Ltd and another* [2010]; *Trimingham v Associated Newspapers Ltd* [2012]; *AAA v Associated Newspapers Ltd* [2013].

⁵⁸ *Rocknroll v News Group Newspapers Ltd* [2013]. See also *Reid v Price* [2020], where some of the information about the claimant’s sexual conduct that he successfully sued the defendant—Katie Price—for disclosing was already publicly known.

⁵⁹ This had earlier persuaded the Court of Appeal to overturn the injunction (see [47]) and Lord Toulson in dissent. In *PJS v News Group Newspapers Ltd* [2016], the High Court approved an agreed final order in the action. See further Tommy Chen ‘PJS and the Tort of Misuse of Private Information’ (2016) 11 *Journal of Intellectual Property Law and Practice* 892.

⁶⁰ The IPSO Editors’ Code should be remembered in this context—clause 6 applies to children specifically—part (v) states that ‘editors must not use the fame, notoriety or position of a parent or guardian as sole justification for publishing details of a child’s private life’. The ‘public interest’ section of the Code (discussed at **section 16.3.1**) may apply however, though para 5 states that in ‘cases involving children under 16, editors must demonstrate an exceptional public interest to over-ride the normally paramount interests of the child’.

⁶¹ See also *Rocknroll v News Group Newspapers Ltd* [2013]. However, the determinant factor from *von Hannover* is always ‘the contribution the published information will make to a debate of general interest’ (Ward LJ at [23]). See also Tugendhat J in *Spelman v Express Newspapers* [2012] (from [55]).

⁶² In March 2016, the defendants in *Weller* were refused leave to appeal the decision to the Supreme Court. What would be the issues and likely outcome of a claim by the TV newsreader in the scenario described at the beginning of the chapter?

⁶³ See especially Lord Mance at [35]–[37] and Lady Hale’s judgment from [72]. See also *Ali and another v Channel 5 Broadcast Ltd* [2018] (at [152]).

⁶⁴ See e.g. *Bull v Desporte* [2019].

⁶⁵ Though see the successful claim in *Wood v Chief of Police for the Metropolis* [2009], where the Court of Appeal ruled that the retention of photographs taken of the claimant (an arms trade protestor) by the police was a violation of his Art 8 right.

⁶⁶ cf *Khuja (formerly known as PNM) v Times Newspapers Ltd* [2017].

⁶⁷ Also see *Rocknroll v News Group Newspapers Ltd* [2013]. Contrast *AAA v Associated Newspapers* [2013].

⁶⁸ Conversely, the iniquitous behaviour of the *defendant* in *NNN v D1 and another* [2014] (blackmail) may have been one of the reasons for granting an injunction and anonymity to the claimant. It certainly was in *LJY v Persons Unknown* [2017] (see Warby J at [2]), where a threat was made against a well-known person ‘in the entertainment business’ that information about an alleged historic offence would be disclosed to the authorities and the press, as well as in *NPV v QEL and another* [2018] in relation to ‘a successful businessman’. In *LJY*, Warby J explained that ‘The blackmail element strengthens the claim. Such conduct considerably reduces the weight attached [or] to be attached to any freedom of expression argument and correspondingly increases the weight of the arguments in favour of restraining publication’ (at [26]).

⁶⁹ Compare *A v B plc* [2003], a case relating to disclosure of information about Premiership footballer Garry Flitcroft’s extramarital affairs. Allowing publication in ‘the public interest’, the Court of Appeal seemed keen to stress that the protection afforded to information about sexual behaviour in ‘transient relationships’ should not be as great as that afforded to that within marriage (see e.g. Lord Woolf CJ at [11] and [43]). How might this impact on the Olympic medallist in the scenarios at the beginning of the chapter? Also consider *Trimingham v Associated Newspapers Ltd* [2012] and *AAA v Associated Newspapers Ltd* [2013].

⁷⁰ Injunctions not only granting anonymity but also prohibiting publication of information about the very existence of legal proceedings.

⁷¹ See e.g. *AVB v TDD* [2014] and *JRV & ARC v BRG* [2023]. Though note, however, that the fact that *details* of a sexual relationship are generally considered private does not necessarily mean that the ‘bare fact’ of the existence of a sexual relationship is: see e.g. *Ntuli v Donald* [2010], *Goodwin v NGN Ltd* [2011]; or vice versa (details can be published but anonymity granted): see e.g. *JIH v NGN Ltd* [2011]. Injunctions preventing the press from naming an individual may also be maintained even after that individual has been named elsewhere (in one case, in Parliament and many internet/social media sites): *CTB v NGN Ltd and another* [2011] (later *Giggs (formerly known as CTB) v NGN Ltd and another* [2012]). In *AAA v Rakoff* [2019], anonymity orders were refused to nine dancers at Spearmint Rhino’s ‘sexual entertainment venues’ among comments that anonymity should not be seen by claimants as an inevitability.

⁷² *CTB v NGN Ltd and another* [2011].

⁷³ This was perhaps compounded by the fact that he was the captain of the England football team and the exposure of his wrongdoing came in the run-up to the 2010 World Cup. Similarly, in finding nothing to substantiate Terry’s application for a super-injunction, the court appeared influenced by the claimant’s desire (or that of his agent) to

protect his commercial interests. See Sam Jones 'John Terry case sparks government concern over super-injunctions' *The Guardian* 31 January 2010. See also *Ferdinand v MGN Ltd (Rev 2)* [2011] for similar issues raised regarding the player who succeeded John Terry to the England captaincy and *McClaren v News Group Newspapers Ltd* [2012] in relation to the former England manager.

⁷⁴ Tugendhat J at [100].

⁷⁵ The anonymity order was granted despite indications that some of the information about the claimant's affairs was already in the public domain. This seems contrary to some earlier cases, notably *Theakston* [2002].

⁷⁶ Note that this was in the context of preserving the anonymity or otherwise of three brothers subject to freezing orders in connection with terrorism allegations. See also *R (Mohamed) v Foreign Secretary (No 2)* [2010], *Graiseley Properties Ltd and others v Barclays Bank plc and others* [2013], and *PNM v Times Newspapers Ltd and others* [2014].

⁷⁷ At [4].

⁷⁸ In a slightly different but related context, in January 2017, a seven-member Supreme Court heard an appeal against *PNM v Times Newspapers* [2014], an important case considering the basis of the open justice principle in the context of whether information that was mentioned in open court (concerning a person who was arrested in relation to grooming offences but not charged) could be reported. A 5:2 majority dismissed the appeal from the refusal of Tugendhat J and the Court of Appeal to grant an injunction to prevent his name being disclosed. The man was named and the case became *Khuja (formerly known as PNM) v Times Newspapers* [2017].

⁷⁹ e.g. in January 2017, *The Times* reported that it was subjected to a gagging order pursued by Ryan Giggs in relation to the terms and financial aspects of his divorce.

⁸⁰ *RJW & SJW v The Guardian Newspaper & Person or Persons Unknown* [2009].

⁸¹ Lord Neuberger MR 'Report of the Committee on Super-Injunctions: Super-Injunctions, Anonymised Injunctions and Open Justice', May 2011. Interestingly, the report confirmed that from the beginning of 2010 until the date of publication, there had only been two super-injunctions, one lasting only for one week (*DFT v TFD* [2010]) and the other overturned on appeal (*Ntuli v Donald* [2010]). Now see *AVB v TDD* [2014].

⁸² As an indication of the number of cases we are talking about, there were 41 privacy claims in the Media and Communications list of the Queen's Bench Division (as it then was) in 2020 (11 per cent of the total list), according to Inform (Inform 'Media and Communications List: Analysis of Claims Issued in 2020' 2 January 2021).

⁸³ *Mail on Sunday* 'The return of the "super injunction": Celebrity gags press from reporting story on their "personal and professional life"' 5 February 2017.

⁸⁴ *The Guardian* 'Publication of hacked David Beckham emails renders injunction worthless' 6 February 2017.

⁸⁵ See also *Ali and another v Channel 5 Broadcast Ltd* [2018] where Arnold J referred to the televised footage as 'voyeuristic' in nature (at [215]).

⁸⁶ Reported in the *Sun on Sunday* on 12 March 2017 under the headline 'Judge gags press'. No public judgment has ever been handed down and the only details are those from the newspaper, which had been allowed to report on the anonymised proceedings.

⁸⁷ *Bloomberg LP (Appellant) v ZXC (Respondent)* [2022].

⁸⁸ Not everyone agrees that this is the correct approach—see Nicole Moreham ‘Why police investigations should not be regarded as private, Part 1’ *Inform’s blog* 18 February 2020.

⁸⁹ HL Deb, 24 November 1997, vol 583, col 784.

⁹⁰ It is notable, e.g. that freedom of expression and ‘freedom of thought, conscience and religion’ are the only Convention rights given this express treatment under the HRA—i.e. only these rights are singled out as deserving special attention by the courts.

⁹¹ Confirmed in *Re S* [2005] and reiterated by the Supreme Court in *PJS* [2016] at [19]–[20], [51] and [65].

⁹² Exceptions include *Malone v Commissioner of Police for the Metropolis (No 2)* [1979], which concerned phone tapping by the police, and ***Wainwright***, concerning an intimate strip-search of visitors to a prison.

⁹³ Compare the ECtHR decision in *von Hannover v Germany (No 2)* [2012], in which Princess Caroline attempted to prevent the continued use of the same pictures. This time, with a different understanding of the claimant as a ‘public figure’ rather than a ‘private individual’, the Court found no violation of Art 8 and that publication of the pictures alongside the article in question contributed to a debate of public interest. A similar conclusion was reached in *von Hannover v Germany (No 3)* [2013]. Also see *Lillo-Stenberg and Sæther v Norway* [2014] and *Hájovský v Slovakia* [2021].

⁹⁴ This was essentially the question for the law lords in ***Campbell***. It has become even more apposite in light of press scandals and the increase in social media forums, blogging etc in recent years. An interesting example of where the press was deemed not to have gone ‘too far’ is in the privacy/harassment claim brought by Carina Trimingham (lover of married former MP Chris Huhne), who was herself formerly in a civil partnership: *Trimingham v Associated Newspapers Ltd* [2012]. In February 2013, following the conviction of Huhne for perverting the course of justice, Trimingham withdrew her appeal against this decision. See also *Abbey v Gilligan and others* [2012].

⁹⁵ Note that in February 2021, just weeks before the Oprah interview was televised, the Duchess of Sussex succeeded in her claim for misuse of private information with respect to a series of newspaper articles reproducing parts of a private letter she wrote to her father in 2018. This was upheld by the Court of Appeal later the same year: *HRH The Duchess of Sussex v Associated Newspapers Ltd* [2021].

⁹⁶ ‘[I]ncreasing levels of personal debt, and in particular rent arrears of tenants in privately-rented accommodation; the dependence of tenants on benefits, and in particular housing benefit; the effect of enforcement of writs of possession by HCEAs [High Court Enforcement Agents]; and the consequences for both landlords and tenants’ (at [185]).

⁹⁷ The programme was said to have had 9.65 million viewers, and clips of it were shared on Facebook and other social media. The claimants were each awarded £10,000. An appeal (to increase the award of damages) and cross-appeal (on the public interest) was heard in December 2018. Neither was successful (*Ali and another v Channel 5 Broadcasting Ltd* [2019]).

⁹⁸ Though the first step to a *successful* claim is still to establish a ‘reasonable expectation of privacy’ so as to engage Art 8: see *Hutcheson (Formerly Known As ‘KGM’) v News Group Newspapers Ltd and others* [2011]; *Goodwin v NGN Ltd* [2011].

⁹⁹ The facts and other claims in ***Wainwright*** are discussed in **section 15.6.1**. However, it has recently been confirmed that a free-standing cause of action in relation to *physical* privacy does not exist: *Pryor v Liverpool Women’s NHS Foundation Trust & Lumsden* [2021].

^{100.} See, in particular, the speech of Lord Hoffmann at [31]–[35], with whom Lords Hope and Hutton agreed. Lord Hoffmann later reiterated the same point in **Campbell** at [43].

^{101.} Article 13 guarantees the right to an effective remedy.

^{102.} Would the same be the case for the teenager in the scenarios at the beginning of the chapter, caught on CCTV committing an act of vandalism? It is not clear that it was merely the fact that publication of the pictures or also the fact that his actions were *inherently* of a private nature that was decisive in that case. Might criminal activity be different?

^{103.} Compare *AVB v TDD* [2014].

^{104.} Compare the decision in **Rothwell v Chemical and Insulating Co Ltd [2007]** on the harm caused by the development of pleural plaques following negligent exposure to asbestos fibres (**section 5.5**) (see also *Dryden and others v Johnson Matthey plc* [2018]) or the birth of unwanted children after a doctor's negligent action or advice (**section 7.5.2**).

^{105.} Joanne Conaghan 'Law, Harm and Redress: A Feminist Perspective' (2002) 22 Legal Studies 319, 322.

^{106.} Joanne Conaghan 'Tort Law and Feminist Critique' (2003) 56 Current Legal Problems 175, 186.

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